

Congress expected foreign states would generally disavow conduct that violates the TVPA because no state officially condones such actions. Thus, in the great majority of cases, an official sued under the TVPA would never receive common-law immunity in the first place, thereby making abrogation unnecessary. Barak points to two examples of this, which adequately prove the point. First, in *Hilao v. Marcos*, 25 F.3d 1467 (9th Cir. 1994), plaintiffs brought claims against the estate of former Filipino dictator Ferdinand Marcos, based on allegations of torture and extrajudicial killings. The Filipino government expressly denied that Marcos’s conduct had been performed in an official capacity and urged that the lawsuits be allowed to proceed. *Id.* at 1472. Likewise, in *Filartiga v. Pena-Irala*, 630 F.2d 876 (2d Cir. 1980), plaintiffs brought an action against a former Paraguayan police official based on allegations that he was responsible for the death of their son. In discussing the act of state doctrine, the Second Circuit noted that the defendant’s conduct had been “wholly unratified by [the Paraguayan] government.” In cases like *Hilao* and *Filartiga*, the TVPA would operate to impose liability on foreign officials who engaged in torture or extrajudicial killings. Thus, our holding today does not render the TVPA a nullity.⁶

For the foregoing reasons, we hold that the TVPA does not abrogate foreign official immunity.

⁶ These cases illustrate circumstances in which a sovereign disavows the conduct of its official. However, both cases mentioned here were filed prior to the TVPA’s enactment and thus were not brought under the TVPA. They nevertheless demonstrate an important point: The TVPA need not abrogate foreign official immunity to have effect.

IV

The Doğans next urge this court to hold that foreign officials are not immune from suit for violations of *jus cogens* norms. Under the circumstances of this case, we decline to recognize this exception to foreign official immunity.

At least three circuits have considered whether to create an exception to foreign official immunity for *jus cogens* violations.⁷ The Doğans urge this court to follow the approach taken by the Fourth Circuit in *Yousuf* (post-remand from the Supreme Court). 699 F.3d at 777. After the Supreme Court denied Samantar immunity under the FSIA and remanded for consideration of foreign official immunity at common law, the Fourth Circuit held that “officials from other countries are not entitled to foreign official immunity for *jus cogens* violations, even if the acts were performed in the defendant’s official capacity.” *Id.* at 777. The court explained that *jus cogens* violations should be excepted from the doctrine of foreign official immunity because they are, “by definition, acts that are not officially authorized by the Sovereign.” *Id.* at 776.

⁷ The Doğans argue that this court’s precedent requires us to recognize an exception for *jus cogens* violations. But this is a misreading of the court’s case law. The cases relied upon by the Doğans for this proposition involve Ferdinand Marcos, a Filipino dictator whose actions were repeatedly disavowed by his own government. See *Marcos*, 25 F.3d at 1472; *In re Estate of Ferdinand E. Marcos Human Rights Litigation*, 978 F.2d 493 (9th Cir. 1992). In those cases, Marcos was not entitled to immunity because the Philippines did not ratify his conduct, and thus the court did not have occasion to consider whether to create an exception to foreign official immunity for *jus cogens* violations. No exception was necessary because Marcos never received immunity in the first place.

In examining this same question below, the district court found the Second Circuit’s opinion in *Matar v. Dichter* more persuasive. 563 F.3d 9 (2d Cir. 2009). In *Matar*, plaintiffs sued the former head of the Israeli Security Agency for his role in an Israel-sanctioned bombing which killed the leader of a terrorist group, but which also incidentally killed the plaintiffs’ family members. *Id.* at 10–11. The Israeli official, Avraham Dichter, argued that he enjoyed foreign official immunity. Because *Matar* was decided pre-*Samantar*, the Second Circuit analyzed immunity alternatively under both the FSIA and the common law. The court reiterated that “there is no general *jus cogens* exception to FSIA immunity.” *Id.* at 14. And, relying on the State Department’s statement of interest in favor of immunity, the court held that Dichter was entitled to common law foreign official immunity. *Id.* at 15 (“The Executive Branch’s determination that a foreign [head-of-state] should be immune from suit even where the [head-of-state] is accused of acts that violate *jus cogens* norms is established by a suggestion of immunity.”) (quoting *Ye v. Zemin*, 383 F.3d 620, 627 (7th Cir. 2004)).

The Doğans frame their argument as a request that this court adopt the Fourth Circuit’s view. But they actually ask this court to go one step further than the Fourth Circuit went in *Yousuf*. In *Yousuf*, the State Department had filed a “suggestion of non-immunity,” highlighting the facts that (1) the defendant was “a former official of a state with no currently recognized government to request immunity on his behalf” and (2) he was a U.S. legal permanent resident, enjoying “the protections of U.S. law,” and thus “should be subject to the jurisdiction of the courts.” *Yousuf*, 699 F.3d at 777. Although the court ultimately held that foreign officials are not immune for *jus cogens* violations, it did not have occasion to consider whether that should be the case

where the foreign sovereign has ratified the defendant's conduct and the State Department files a Suggestion of Immunity on his behalf. *Id.* at 776 ("However, as a matter of international and domestic law, *jus cogens* violations are, by definition, acts that are not officially authorized by the Sovereign.") (citing *Siderman*, 965 F.2d at 718). Thus, the court in *Yousuf* had no occasion to consider whether *jus cogens* violations should be an *exception* to foreign official immunity because, as in the *Marcos* cases, the defendant was never given immunity in the first place. As far as we can tell, no court has ever carved out an exception to foreign official immunity under the circumstances presented here. We also decline to do so.

V

Finally, the Doğans argue that the district court abused its discretion when it used extrinsic evidence in describing the *Mavi Marmara* incident and some of the related foreign policy considerations. The court mentioned extrinsic evidence in describing the background facts of the case. However, its decision was based on the facts alleged in the complaint and declarations filed. That is: (1) the conduct challenged was taken by Barak in his official capacity as Israeli defense minister, (2) the state of Israel subsequently ratified Barak's conduct, and (3) the State Department filed a Suggestion of Immunity asking that he be immune from suit. These three facts are undisputed, and they form the basis of the court's legal analysis and decision. Any use of extrinsic evidence was not prejudicial.

VI

For the foregoing reasons, we **AFFIRM** the district court judgment dismissing the Doğans' suit on the ground that Barak is entitled to common law foreign official immunity.